

Legal Considerations Online

Any long-time real estate professional will be happy to tell you that at one point, the MLS was a thick catalog (or several catalogs) similar in size to large metropolitan Yellow Pages. To find a listing, the licensee had to thumb through hundreds of pages, usually categorized by area and not much else. Pricing changes, status changes, and new listings lagged miserably behind publication. Thankfully, we now have the Internet and the MLS, where we can disseminate information almost in real time, and find it just as quickly. This is both a benefit and a minefield. Listings receive great exposure, but if the information you provide is wrong, misleading, or fraudulent, this increases *your* exposure, as well-to litigation.

A good brokerage will mitigate these risks and enhance the benefits by providing instructions in a policies and procedures manual about using social media and technology. Three areas where licensees are most prone to exposure-both good and bad-are:

- Websites
- Social networking sites
- Email

Websites

Websites include the MLS, the licensee's personal promotional website, and the brokerage website (where the licensee may have an individual page). Information on these sites must be kept accurate and up to date. In addition, required contact information and disclosures must be provided. To add a layer of protection, many real estate websites include disclaimers to indicate that the material on the site is for informational purposes only, and that no warranties or representations are being made. How much of that will help in a court of law remains to be seen. It's best to keep the information accurate and truthful in the first place.

Social Networking Sites

Social networking sites are popular ways for licensees to promote themselves and their listings. The "big four" are Facebook, Twitter, YouTube, and LinkedIn, but there are dozens, even hundreds, of others. Brokerage firms should include instructions on the proper use of social media sites for brokerage purposes in their policy and procedure manuals. And before licensees publish a client's listing or other information online, they should obtain the client's permission. Safety, security, and confidentiality must always be maintained. If a social media post is shared by someone other than the licensee, there's risk of the content being modified imposing non-compliance with federal, state, or Code of Ethics. A licensee should monitor the comments and use of content for improper use. When there's inappropriate comments or misuse, it's recommended to remove it.

Email

Email is another form of online communication that's very popular (although for many purposes, it's being replaced by text messaging). The sending and receiving of documents, however, is almost exclusively done via email, with digital signatures making this a fairly easy and efficient process. However, licensees should use caution when making commitments by email when there aren't client signatures. In some court cases, transfer of information by email was considered an electronic signature and binding to the parties, even without a signature. The party's intent is what the court considered. Be careful when forwarding client communications, as well. You may inadvertently forward prior confidential emails.